



Appeal Decision

Site visit made on 18 August 2026

by J Buxton BA(Hons) DipArch ARB RIBA

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6011217

Four Winds, The Common, Melbourne DE73 8DH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr David Westwood against the decision of South Derbyshire District Council.
 - The application reference is DMPA/2026/0030.
 - The development proposed is permission in principle for the erection of a self-build dwelling.
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Decision

1. The appeal is allowed and permission in principle is granted for the erection of residential development comprising a minimum of one and a maximum of one dwelling at Four Winds, The Common, Melbourne DE73 8DH in accordance with the terms of the application, reference DMPA/2026/0030, dated 4 January 2026.

Preliminary Matters

2. The Government published a revised National Planning Policy Framework (the Framework) on 17 August 2026. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision and references hereafter relate to the new version.
3. The proposal is for Permission in Principle (PiP). Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The PiP consent route has 2 stages: the first stage (or PiP stage) establishes whether a site is suitable in-principle, and the second (Technical Details Consent) stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
4. The description of development in the banner heading has been taken from the description of development in the application form. The PiP procedure requires the minimum and maximum number of dwellings to be specified. I have, therefore, included the words minimum and maximum numbers in my formal decision.
5. The application form also indicates that PiP is sought for a self-build dwelling. However, as there is no mechanism before me that would secure the delivery of the development as a self-build dwelling, I have determined the appeal on the basis of residential development comprising a minimum of one and a maximum of one dwelling, rather than a self-build dwelling.

¹ PPG Permission in Principle Paragraph: 012 Reference ID:58-012-20180615

6. The scope of the considerations for PiP is limited to location, land use and the amount of development permitted¹. All other matters are considered as part of a subsequent Technical Details Consent application if PiP is granted. I have determined the appeal accordingly and treated any details related to a Technical Details Consent as being illustrative only. There is no disagreement between the parties with regard to land use and amount of development and so my deliberations centre on whether the site is a suitable location for the proposed development.

Main Issue

7. Taking into account the above, the main issue is whether the site is a suitable location for the proposed development.

Reasons

8. The appeal site forms part of the residential curtilage associated with Four Winds, located on The Common to the west of Melbourne. The site lies outside the defined settlement boundary of Melbourne and comprises part of the existing side garden serving the dwelling. The land is bounded by established vegetation, the gardens of the existing property and woodland. Direct access from The Common to the site is available via the driveway to the Four Winds.

Suitable location

9. Policy H1 of the South Derbyshire Local Plan Part 1 (SDLP P1) directs housing growth to the district's most sustainable settlements. Whilst Melbourne is identified as a Key Service Village, the appeal site lies outside its defined settlement boundary and therefore within the Rural Areas. In addition, Policies SDT1 and BNE5 of the South Derbyshire Local Plan Part 2 (SDLP P2) and Policy DP1 of the Melbourne Neighbourhood Plan (NP) seek to direct development to defined settlements and restrict inappropriate development in the Rural Areas. As the proposal would result in an additional dwelling outside Melbourne's settlement boundary, it conflicts with the spatial strategy of the development plan. There is no substantive evidence before me that leads me to a different conclusion.
10. Policy BNE5 also identifies a number of forms of development that may be acceptable within Rural Areas, including infill development within small gaps in otherwise substantially developed frontages. The Council's reason for refusal states that the proposal does not fall within any of the categories of development supported by the policy and does not amount to acceptable infill. Having regard to the appeal site's position within the side garden of Four Winds and its relationship to the surrounding pattern of development, I agree that the proposal does not fall within the category of infill development envisaged by Policy BNE5(iv). Nor is there evidence before me that the proposal would fall within any of the other forms of development expressly identified by that policy. Consequently, I find that the proposal does not accord with the forms of development envisaged by Policy BNE5 for the Rural Areas.
11. Nevertheless, Policy BNE5 also seeks to ensure that development within the Rural Areas does not unduly affect landscape character and quality. Whilst detailed considerations of design and layout fall beyond the scope of this PiP appeal, I have had regard to the physical characteristics of the site in assessing

its suitability for residential development. The site forms part of the established domestic curtilage of Four Winds and is enclosed by existing garden land and vegetation. Consequently, the proposal would be contained within an existing residential plot and would not extend into the wider countryside. Nor is there persuasive evidence that it would erode an important gap between groups of dwellings or otherwise harm the character and setting of Melbourne. I am therefore satisfied that the proposal would have little effect on rural character and would not materially undermine the landscape objectives of Policy BNE5.

12. Drawing these matters together, whilst the proposal would have limited effect on rural character, it would nevertheless result in an additional dwelling outside the defined settlement boundary of Melbourne. As such, it conflicts with Policy H1 of the SDLP P1, Policies SDT1 and BNE5 of the SDLP P2 and Policy DP1 of the NP, which seek to direct housing development to sustainable locations within defined settlements and restrict inappropriate development in the Rural Areas.

Other Matters

13. Derbyshire Wildlife Trust raises no objection to the principle of development but recommends that ecological assessment work be undertaken at the Technical Details Consent stage. Likewise, the County Archaeologist and Environmental Health Officer raise no objections in principle. These matters do not alter my conclusion on the suitability of the site.
14. I have also had regard to concerns regarding the effect of the proposed development on the character and appearance of the area, residential amenity, drainage, biodiversity and access arrangements. However, these detailed matters would be considered through any subsequent Technical Details Consent application and as such they do not materially affect my assessment.

Planning Balance

15. Policy S3 of the Framework states that decisions on development proposals should apply a presumption in favour of sustainable development. As the site is located outside of a settlement, Policy S3 states that Policy S5 is applicable.
16. Policy S5(1)(d) of the Framework indicates that development proposals outside of settlements involving the redevelopment of previously developed land should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the decision-making policies of the Framework.
17. The appellant contends that the appeal site falls within the Framework definition of previously developed land, a position disputed by the Council. The Framework defines previously developed land as including the curtilage of developed land, subject to specified exclusions. Whilst the site forms part of a residential garden, the exclusion relating to residential gardens applies only within built-up areas. As the site lies outside the defined settlement boundary and there is no evidence before me that it forms part of a built-up area, that exclusion is not engaged. Accordingly, I find that the site comprises previously developed land for the purposes of the Framework.

18. Policy HO7 of the Framework states that the substantial weight should be given to the benefits of providing homes which contribute towards meeting identified housing needs. In this case, the proposal would provide a single dwelling. However, whilst limited in scale, the proposal would nevertheless make a meaningful contribution towards the Framework's objective to support the delivery of a substantial increase in the supply of homes, and I attach substantial weight to this benefit.
19. The appellant also relies upon the self-build nature of the proposal and refers to Framework Policies HO1 and HO7, together with evidence of an identified shortfall in self-build plot provision within the district. However, the appeal before me is made in the form of PiP, which establishes only the location, land use and amount of development. It does not secure the identity of the future developer, the method of delivery or occupation of the dwelling. Consequently, there is no mechanism before me which would ensure that the development would come forward as a self-build dwelling. Whilst the proposal has the potential to contribute towards self-build provision, that benefit remains uncertain and I therefore attach only limited weight to it.
20. The appeal site is well related to Melbourne and benefits from established pedestrian connections to the village centre. The village contains a range of services and facilities capable of meeting day-to-day needs. I also noted that a bus stop is located immediately outside the site. Consequently, future occupiers would have opportunities to access services and facilities by a combination of walking and public transport. Whilst private car use would inevitably form part of travel patterns, I do not find that the site is isolated from services, facilities or public transport provision. This is also consistent with the conclusions of the Highway Authority, which raises no objection to the proposal in principle. This weighs in favour of the proposal.
21. The proposal would also generate temporary economic benefits during construction and a limited degree of ongoing support for local services through household expenditure. I attach limited weight to those benefits given the modest scale of the proposal.
22. Against these benefits, the proposal would result in an additional dwelling outside the defined settlement boundary. Consequently, it would conflict with development plan policies which seek to direct housing development to the most sustainable settlements and restrict inappropriate development in rural areas. I have had regard to the appellant's submissions concerning Annex A of the Framework. However, I find that Policies H1, SDT1, BNE5 and DP1 are not materially inconsistent with national decision-making policies of the Framework in that they seek to direct development to sustainable locations and support only certain forms of development outside settlements. Accordingly, I do not consider that Annex A reduces the weight to be afforded to those policies.
23. Nonetheless, given the site's accessibility, its relationship with Melbourne, its previously developed status and the limited effect on rural character, I find that the harm arising from this conflict would be limited.

24. Taken together, I find that the benefits of the proposal would not be substantially outweighed by the adverse effects. Accordingly, the proposal satisfies the requirements of Policy S5(1)(d). In these circumstances, the Framework indicates that PiP should be granted.

Conditions

25. The PPG makes it clear that it is not possible for conditions to be attached to a grant of permission in principle. The terms of the application already include, site location, type of development and amount, and the amount has been expressed in the decision paragraph, as required by the PPG.

Conclusion

26. For the reasons given above, the benefits of the scheme and the provisions of the Framework mean that, although the development conflicts with the development plan, the material considerations indicate that a decision should be made other than in accordance with it. Therefore, the appeal is allowed.

J Buxton

INSPECTOR